IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT IN AND FOR HILLSBOROUGH COUNTY, STATE OF FLORIDA FAMILY LAW DIVISION

In re: the Marriage of:

SARAH HANSON,

Petitioner/Wife,

and

CHRISTOPHER HANSON,

Respondent/Husband.

_____/

Case No.: 24-DR-001150

Division: D

WIFE'S MOTION TO COMPEL DISCOVERY

Pursuant to Fla. Fam. L. R. P. 12.380(a), Petitioner, Sarah Hanson ("**Wife**"), moves this Court for entry of an order compelling Respondent, Christopher Hanson ("**Husband**"), to fully and completely comply with his Florida family law mandatory disclosure obligations.

FACTS

1. This is a motion for an order compelling discovery pursuant to Fla. Fam. L. R. P. 12.380, specifically Husband's incomplete mandatory disclosure responses, and for an award of attorney's fees, costs, and suit money.

2. On April 4, 2024, Husband was served with the Joint Petition for Dissolution of Marriage with Dependent/Minor Children (the "**Petition**") [**DIN 5**].

3. Therefore, Husband was required to comply with Fla. Fam. L. R. P. 12.285, Mandatory Disclosure, on or before May 20, 2024.

4. On June 28, 2024, Husband filed Respondent's Certificate of Compliance with Mandatory Disclosure [**DIN 35**]; however, Husband's mandatory disclosure was incomplete.

5. Fla. Fam. L. R. P. 12.380(a)(3) states "[f]or purposes of this subdivision an evasive or incomplete answer shall be treated as a failure to answer."

6. On December 2, 2024, counsel for Wife sent a letter to counsel for Husband counsel to serve as a meet and confer regarding Husband's mandatory disclosure deficiencies, specifically the outstanding documents necessitated by Fla. Fam. L. R. P. 12.285 (the "**Good Faith Letter**"). A copy of the Good Faith Letter is attached as "**Exhibit A**." The Good Faith Letter attempted to obtain Husband's compliance without court action and requested that Husband comply with his outstanding mandatory disclosure obligations within 10 days of the date of the letter, which would have been December 12, 2024.

7. The missing or incomplete mandatory disclosure documents are as follows:

a. Fifth Third Checking [redacted] statements for May 1, 2023, through December 21, 2023.

b. Fifth Third Checking [redacted] remining cancelled checks. Husband's Certificate of Compliance indicates he would need to order remaining statements from the bank.

c. Cancelled checks for Fifth Third Checking [redacted] account for the period of May 6, 2023, through June 7, 2024.

d. Fifth Third Certificate of Deposit statements for the period of May 2023 through date of closing account.

e. Copies of cancelled checks or other documentation for the income/deposits reflected in Fifth Third Bank Checking [redacted] statements for the period of January 1, 2024, through June 28, 2024. Specifically, but not limited to the following deposits:

i. 01/12/2024 in the amount of [redacted]

ii. 01/19/2024 in the amount of [redacted]

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iii. 02/02/2024 in the amount of [redacted]

iv. 02/20/2024 in the amount of [redacted]

v. 03/15/2024 in the amount of [redacted]

f. Fifth Third credit card [redacted] statements for the period of May 2022 through January 11, 2023; and March 12, 2023, through May 11, 2023.

g. Fifth Third mortgage statements for the past 24 months.

h. Wells Fargo credit card [redacted] f/k/a [redacted] statements for the period of May 2022 through May 8, 2023.

8. As of December 13, 2024, the date of filing of this motion, Husband has not corrected any of his mandatory disclosure deficiencies.

LEGAL STANDARD

The Importance of Mandatory Disclosures

9. In Florida family law cases, financial disclosures are made for the benefit of the court and the opposing party. Financial disclosures are central to the fair resolution of cases because settlement decisions and courts rulings are dependent on full financial disclosure.

10. Florida's Fourth District Court of Appeals best explained the importance of financial disclosures in *Daniel v. Daniel*, 922 So. 2d 1041, 1045 (Fla. 4th DCA 2006), which provides the following:

> A financial affidavit is central to the job of a court trying to do justice in a divorce case. The property divisions made and obligations imposed by a final decree turn on the financial condition of the parties. A court cannot do the right thing without sufficient information about the parties' finances.
>
> It is not unusual for a settled family case to reappear before the court on the claim that the settlement was procured by fraud. The special treatment reserved for post-dissolution fraud claims demonstrates the importance of the financial affidavit to the family law process. Even though the law values finality of judgments, the filing of a

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> fraudulent financial affidavit justifies relief under Florida Rule of Civil Procedure 1.540(b), without the one-year time limit that can apply to such motions. *See* Fla. Fam. L.R.P. 12.540. While evidence of a person's financial condition may be drawn from a multitude of documents, a financial affidavit is a party's formal, sworn position that reduces finances to a manageable chunk of information. The affidavit becomes "ground zero" for any request for post-judgment relief that comes before the court.
>
> A financial affidavit is filed for the benefit of the court and the opposing party in the dissolution. Decisions on whether and how to settle a case depend on full, honest financial disclosure. The financial affidavit is at the center of the system established by the Family Law Rules to resolve the issues that arise in family cases.

11. As explained in *Daniel*, it is imperative that the Court requires that full financial disclosures are made in advance of any court ruling or settlement.

The Mechanics of Rule 12.285

12. Under Fla. Fam. L. R. P. 12.285, the Parties are required to comply with the following mandatory disclosure obligations:

a. File and serve a Florida family law financial affidavit. *See* Fla. Fam. L.R.P. 12.285(e)(1);

b. Produce a multitude of financial disclosure documents. *See* Fla. Fam. L.R.P. 12.285(e)(2-16); and

c. File and serve a certificate of compliance that identifies with particularity the documents that have been delivered, states the date of compliance, and swears or affirms under oath that the disclosure is complete, accurate, and in compliance with Rule 12.285. *See* Fla. Fam. L.R.P. 12.285(j).

13. Under Fla. Fam. L.R.P. 12.285(e), the Parties are required to produce a wide variety of financial documents, including tax returns, IRS forms, evidence of earned income, loan

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applications, checking account statements, retirement account statements, financial statements, and statements for ***all other accounts***. *See* Fla. Fam. L.R.P. 12.285(e) (***emphasis added***).

14. Under Fla. Fam. L.R.P. 12.285, Parties have a "continuing duty to supplement documents described in this rule, including financial affidavits, whenever a material change in their financial status occurs." *See* Fla. Fam. L.R.P. 12.285(f)(1).

15. Fla. Fam. L.R.P. 12.285 also specifically provides the following:

> If an amended financial affidavit or an amendment to a financial affidavit is filed, the amending party must also serve any subsequently discovered or acquired documents supporting the amendments to the financial affidavit.

See Fla. Fam. L.R.P. 12.285(f)(2).

16. A party is also obligated to file and serve a certificate of compliance with his mandatory disclosure obligation:

> All parties subject to automatic mandatory disclosure must file with the court a certificate of compliance, Florida Family Law Rules of Procedure Form 12.932, **identifying with particularity the documents which have been delivered and certifying the date of service of the financial affidavit and documents by that party**. The party must swear or affirm under oath that the disclosure is complete, accurate, and in compliance with this rule, unless the party indicates otherwise, with specificity, in the certificate of compliance.

See Fla. Fam. L. R. P. 12.285(j) (**emphasis added**).

17. The Certificate of Compliance must identify with particularity the documents that have been delivered and certify the date of service of the financial affidavit and documents by that party.

18. One reason for requiring the Certificate of Compliance and requiring parties to identify with particularity the documents provided is to avoid one lawyer "swearing" that they

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delivered certain mandatory disclosure documents, and the other lawyer "swearing" that the documents were never received.

19. In short, Fla. Fam. L. R. P. 12.285 requires parties to disclose their finances, provide supporting documents, and update the disclosures whenever there is a material change.

20. A party must produce these documents to have a fair trial or hearing.

ARGUMENT

21. At present, Wife received no response to the Good Faith Letter.

22. In short, Husband has completely ignored his obligation to provide complete financial disclosures. Wife is therefore entitled to an order compelling Husband's full compliance with mandatory disclosure.

23. Specifically, Husband should be required to provide the outstanding documents required by

WIFE'S REQUEST FOR ATTORNEY FEES

24. Wife's Attorney Fees. Wife has engaged counsel in connection with this proceeding and is obligated to pay attorney fees and costs incurred in this action. The Court should order an award of attorney fees, court costs, and suit money based upon Husband's failure to fully comply with mandatory disclosure. Furthermore, the Court must award Wife reasonable expenses, including attorney's fees. The only exceptions are where the circumstances would make an award of expenses unjust, opposition to the motion is justified, or the moving party failed to meet and confer regarding the requested relief. *See* Fla. Fam. L.R.P. 12.380(a)(4).

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WIFE'S REQUEST FOR RELIEF

WHEREFORE, Wife respectfully requests this Court enter an order granting the following relief:

A. Requiring Husband to produce all outstanding mandatory disclosure documents within 10 days;

B. Awarding attorney fees and costs to Wife pursuant to Fla. Fam. L. R. P. 12.380(a)(4); and

C. Granting any further relief the Court deems proper under the circumstances.

Dated: December 13, 2024

Respectfully submitted,

/s/ Scott Paul Davis

Scott Paul Davis, Esq., B.C.S.
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P.O. Box 118667
Tampa, FL 33679
(813) 251-6222 (telephone)
Counsel for Wife

CERTIFICATE OF SERVICE

I hereby certify that, on December 13, 2024, a true and correct copy of the foregoing was served via the Florida Courts E-Filing Portal on all counsel of record.

/s/ Scott Paul Davis

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Exhibit A

TAMPA BAY FAMILY LAW & MEDIATION, P.A.

Scott Paul Davis. Esq., B.C.S.
Board Certified in Marital and Family Law

P.O. Box 18667
Tampa, Florida 33679
Telephone: (813) 251-6222

December 2, 2024

Vivian Cortes Hodz, Esq. **Via E Mail Only**
vivian@corteshodzlaw.com
service@corteshodzlaw.com

Re: *Hanson, Sarah v. Hanson, Christopher;* Case No: 24-DR-001150-D
Good Faith

Dear Ms. Hodz:

I have reviewed the financial disclosures provided with Mr. Hanson's Certificate of Compliance with Mandatory Disclosure, and it has come to my attention that not all of the required documentation has been produced. Based on my review, it appears the following documents are missing or incomplete:

1. Fifth Third Checking [redacted] statements for May 1, 2023 through December 21, 2023.
2. Fifth Third Checking [redacted] remining cancelled checks. Husband's Certificate of Compliance indicates uld need to ord ining statements from the bank.
3. Cancelled checks for Fifth Third Checking [redacted] account for the period of May 6, 2023 through June 7, 2024.
4. Fifth Third Certificate of Deposit statements for the period of May 2023 through date of closing account.
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6. Fifth Third credit card [redacted] statem he period of May 2022 through January 11, 2023; and March 12, 2 ough May 11, 2023.
7. Fifth Third mortgage st ts for ast 24 months.
8. Wells Fargo credit card [redacted] f/k/a [redacted] statements for the period of May 2022 through May 8, 2023.

Please accept this correspondence as my good faith attempt to obtain the outstanding disclosure. Should I not receive same within ten (10) days from the date of this letter, then we will move forward with filing a motion with the Court. Thank you very much for your time and consideration. Should you have any questions or further instructions, please do not hesitate to contact my office.

Respectfully submitted,

TAMPA BAY FAMILY LAW & MEDIATION, P.A.

/s/ Scott Paul Davis

Scott Paul Davis, Esq., B.C.S.

cc: Client

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